

Attachment 1 – Solicitation Terms and Conditions

Janitorial Services for USDA, AMS, Cotton & Tobacco Program in Memphis, TN Solicitation Number 12639526Q0120

Statement of Requirement (Performance Work Statement):

C.1 SCOPE OF SERVICES:

This contract is for janitorial services for the USDA, AMS, Cotton and Tobacco Program Memphis complex located at 3275 Appling Road, Memphis, TN 38133. The Contractor must furnish all management, labor, equipment, supervision, supplies (except those designated as Government-furnished), and incidentals to perform all work necessary to clean and maintain the building in a manner that will maintain a satisfactory condition and present a clean, neat, and professional appearance.

The Contractor will be responsible for the professional appearance and cleanliness of all general and private offices, central service areas, common areas, restrooms, lunch/break rooms, hallways, and laboratories unless specified excluded by the COR or excluded herein.

This work is being solicited as a performance-based service contract. Performance based means the Contractor is responsible for an end product. If an end product is not provided in compliance with the contract specifications, an adjustment to the payment will be made. *See attached Quality Assurance Surveillance Plan, QASP.*

C.2 TIME OF SERVICE:

The Contractor must perform a regular and systematic inspection to insure maximum efficiency at all times. The Contractor or responsible representative and the COR will conduct a walk-through inspection the first week of each month at a jointly agreed upon time between 8:00 a.m. and 4:30 p.m., Monday through Friday.

Services will be performed daily when the Cotton and Tobacco Program office is open for operation. Typically, normal operations follow a government schedule, observing national holidays, from January through August. **During peak office operations, typically from September through December, the office could be open up to seven (7) days a week and up to three (3) eight-hour (8 hr.) shifts per day depending on the workload.**

The COR will provide the Contractor with a minimum of 48 hours notice when the Program will begin multiple shift operations. All common areas of the facility, restrooms, hallways, break rooms, and entry ways will be cleaned daily and on each shift when the office is open, including weekends and multiple shifts, during the peak season. However, all such work must be scheduled through and approved by the COR or the COR's designee.

Contractor employees must not use any Government machines or equipment including telephones (except when work related), copy machines, computers, printers, etc. Contractor employees must not eat, drink, use cell phones or play radios except in the lunch/break room.

C.3 STANDARD JANITORIAL SERVICES

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The services specified herein shall be performed by the Contractor in accordance with the requirements of this specification. Such services shall include providing of all labor, supervision or services necessary for performance of the work unless otherwise specified herein.

C.3.1 Maintain Floors. All floors, except carpeted areas, shall be swept, dust mopped, damp mopped, wet mopped, dry buffed, and spray buffed, as needed, to ensure they have a uniform, glossy appearance and are free from dirt, debris, dust, scuff marks, heel marks, other stains and discoloration, and other foreign matter. Baseboards, corners, and wall/floor edges shall also be cleaned. All floor maintenance solutions shall be removed from baseboards, furniture, trash receptacles, etc. Chairs, trash receptacles, and other moveable items shall be moved to maintain floors underneath these items. All moved items shall be returned to their original and proper position. Extremely stubborn spots, gum, rust, burns, etc. – shall be removed by hand. Corner and other areas that the floor machines cannot reach shall also be cleaned by hand.

C.3.2 Remove Trash. All trash containers shall be emptied and returned to their initial location. Boxes, cans, papers, and other articles placed near a trash receptacle and marked “TRASH” shall be removed. Receptacle liners shall be replaced with each trash removal. All collected waste is to be placed in the appropriate dumpster. The dumpster area shall be free of loose debris and doors and lids closed at all times. The dumpster will be supplied by USDA, AMS, Cotton and Tobacco Programs. Paper materials placed in receptacles clearly marked “RECYCLE” shall be emptied into designated bins inside and outside of the building.

C.3.3 Interior Glass/Mirrors. All interior glass, including glass in doors, partitions, walls, display cases, directory boards, etc. and mirrors in restrooms and other designated locations shall be cleaned. There shall be no trace of film, dirt, smudges, water, or other foreign matter.

C.3.4 Drinking Fountains. Drinking fountains shall be cleaned and disinfected, with cleaner not harmful to human consumption, including all porcelain and/or polished metal surfaces, orifices and drains, and exterior surfaces of fountain. Drinking fountains shall be free of streaks, stains, spots, smudges, scale, and other obvious soil.

C.3.5 Stairways. All floor surfaces shall be cleaned in accordance with paragraph C.4.1 or C.4.6, as appropriate for floor covering. Grease and grime shall be removed from stair guards, handrails and baseboards. Contractor shall remove all marks, dirt, smudges, scuffs, and other foreign matter from adjoining stairwell walls to provide or maintain a clean, uniform appearance.

C.3.6 Carpets. All carpeted areas (approximately 17,000 sq. ft.) shall be vacuumed. After vacuuming, the carpeted area shall be free of all visible dirt, debris, litter and other foreign matter. Any spots shall be removed by carpet manufacturer’s approved methods as soon as noticed. All tears, burns, and raveling shall be brought to the attention of the COR. Area rugs and throw rugs are included to receive this service. Vacuuming will include moving chairs and trash cans and returning them to their original location upon completion.

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C.3.7 Vacuum and Clean Floor Mats. Vacuum and clean interior and exterior floor mats. After vacuuming or cleaning, mats shall be free of all visible lint, litter, soil and other foreign matter. Soil and moisture underneath mats shall be removed and mats returned to their normal location.

C.3.8 General Spot Cleaning. Perform spot cleaning on a continual basis. Spot cleaning includes, but is not limited to removing or cleaning smudges, fingerprints, marks, streaks, spills, etc., from washable surfaces of all walls, partitions, vents, grillwork, doors, door guards, door handles, push bars, kick plates, light switches, temperature controls, and fixtures. After spot cleaning, the surface shall have a clean, uniform appearance, free of streaks, spots, and other evidence of soil.

C.3.9 General Dusting. All horizontal surfaces must be dusted or cleaned to eliminate dust collection.

- a. Low Dusting – After low dusting, all dust, lint, litter, and dry soil shall be removed from the horizontal surfaces of desks, chairs, file cabinets, other types of office furniture equipment and from horizontal ledges, window sills, to a line 7 feet about floor level. There shall be no dust streaks or marks left by dusting tools.
- b. High Dusting – After high dusting, all dust, lint, litter and dry soil shall be removed from all surfaces above 7 feet. There shall be no dust streaks or marks left by dusting tools.

C.4 STANDARD JANITORIAL SERVICES FOR RESTROOMS. The contractor shall accomplish all cleaning tasks to meet the requirements of this Performance Work Statement.

C.4.1 Clean and Disinfect. Completely clean and disinfect all surfaces of sinks, toilet bowls, urinals, lavatories, dispensers, plumbing fixtures, partitions, doors, walls, and other such surfaces, using a germicidal detergent. After cleaning, receptacles shall be free of deposits, dirt, streaks, and odors. Disinfect all surfaces of partitions, stalls, stall doors, entry doors, (including handles, kick plates, ventilation grates, metal guards, etc.), and wall areas adjacent to wall mounted lavatories, urinals, and toilets.

C.4.2 Toilet Bowls and Urinals. Descaling shall be performed monthly as a minimum and as often as needed to keep areas free of scale, soap films, and other deposits. After descaling, surfaces shall be free from streaks, stains, scale, scum, urine deposits, and rust stains.

C.4.3 Sweep and Mop Floor. After sweeping and mopping, the entire floor surface, including grout, shall be free from litter, dirt, dust and debris. Grout on wall and floor tiles shall be free of dirt, scum, mildew, residue, etc. Floors shall have a uniform appearance without streaks, swirl marks, detergent residue, or any evidence of soil, stain, film or standing water. Moveable items shall be tilted or moved to sweep and damp mop underneath. Floors shall be stripped, scrubbed, waxed, etc., as necessary, to maintain sanitary conditions and a clean, uniform appearance.

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C.4.4 Stock Restroom Supplies. Contractor shall ensure restrooms are stocked sufficiently so that supplies including soap for the soap dispensers, toilet paper, paper towels, seat covers, sanitary product disposal bags, etc. do not run out. Supplies shall be stored in designated areas.

C.5 STANDARD JANITORIAL SERVICES TASKS AND FREQUENCIES:

DAILY JANITORIAL TASKS (every 8-hour shift):

1. Dust and damp mop all hard floor surfaces located in the lobbies, landings, stairs, entryways, restrooms, lunch/break rooms, and hallways.
2. Vacuum all areas where cotton lint, dust, debris, etc. are visible
3. Dust chairs and all other office furniture. **The surface of desks, computers, keyboards or screens are not to be dusted.** The front, sides, legs etc. of the desk can be dusted.
4. Dust all interior walls including all interior wall grooves.
5. Dust ledges and beveled tops of all window sills and ceiling vents.
6. Perform low dusting, i.e., molding, bottom shelving on equipment.
7. Restrooms - Empty wastebaskets, replace liners as needed. Completely damp clean, deodorize, and disinfect all surfaces of partitions, stalls, stall doors, counters, cabinets, mirrors and wall areas adjacent to wall mounted lavatories, plumbing fixtures, urinals, and toilets. Wash underside and tops of seats. Clean, disinfect, and deodorize toilet room floors. Clean, disinfect, and deodorize all restroom entry area walls and doors. Restrooms shall be maintained such that supplies do not run out. Replenish soap, towels, seat covers, sanitary receptacles bags, and toilet, urinal, and room deodorizers as required. Paper towels are to be maintained at all additional sink areas (break rooms). Check the function of all dispensers and fixtures on all restrooms. Report maintenance problems to COR. Clean all restroom mirrors and ensure all are free from smudges, residue, or foreign materials.
8. Clean all windows and door glass (both sides) in the lobby twice weekly, in addition to all glass partitions, interior glass doors, display cases, director boards, and draft shields on windows, mirrors and adjacent trim. After glass cleaning, all traces of film, dirt, smudges, water and other foreign matter will be removed from frames, casing and sills.
9. Empty all waste baskets and carry trash to dumpster. Wipe lunch room tables with damp cloth. Spot clean partitions, doors, door glass, all door frames, and spot clean around wall switches.
10. The Contractor shall keep trash in Recycle Containers separate from other trash and empty recycle bins into designated collection bins inside and outside of the building.
11. Replace all trash receptacle liners with new liners at the time of each emptying. Plastic liners must be correctly sized for the receptacle. Clean and deodorize the interior and exterior of all soiled containers.
12. Clean, disinfect, and polish all drinking fountains.
13. Clean, disinfect, and deodorize all sinks, counter tops and surrounding areas in break rooms.

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14. Spot clean all soda, coffee, fingerprints, dirt smudges, wash splatter and wax from all visible surfaces including all vending machines.
15. Clean the exterior surface of all vending machines.
16. Clean baseboards with a neutral cleaner.

NOTE: All daily janitorial tasks must conform to requirements covered in previous sections of this document.

WEEKLY JANITORIAL TASKS:

1. Mop all waxed floors to remove dirt, mud and traffic/scuff marks.
2. Vacuum all carpeted areas and walk-off mats, including all hard-to-reach areas such as under counters, under furniture, and all nooks and crannies. Remove stains with soft cleaning solution as necessary.
3. Damp mop all carpet protectors (chair desk mats) in the interior of the building.
4. Dust all pictures, bulletin boards, certificates on all interior walls

MONTHLY JANITORIAL TASKS:

1. Vacuum upholstered chairs; perform high dusting, i.e. door sashes, light globes and equipment.
2. Clean all door threshold plates and dust all door frames and jams.
3. Dust and clean air vent grills (ceiling).
4. Machine buff all waxed floors to remove traffic marks & restore luster of wax.

QUARTERLY JANITORIAL TASKS:

1. Deep scrub ceramic tile in restrooms and entrance way.

ANNUAL JANITORIAL TASKS:

1. Hallway and breakroom floors shall be stripped and waxed one time each year to be coordinated with USDA personnel.
2. The wax application shall consist of a minimum of 3 layers of wax.
3. Clean all exterior windows

C.6 ABOVE STANDARD (AS-NEEDED) JANITORIAL SERVICES:

USDA may order Above Standard (As-Needed) Services (Emergency or Special Event Janitorial Services) as outlined below at its discretion at any time throughout the period of performance of the IDIQ contract. If ordered, USDA will issue a task order for the additional service ordered, containing a firm fixed-price (per task) as awarded and applicable for the Ordering Period that the Above Standard Service is ordered within. **If Above Standard Services are ordered and the total of the order is**

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**\$2,500.00 or less, the order may be paid via Government Purchase Card (GPC) (credit card).
The Contractor must have and maintain the ability to accept major credit cards.**

- **EMERGENCY OR SPECIAL EVENT JANITORIAL SERVICES.** Upon notification, the contractor shall perform emergency or special event janitorial services required in any building, area, or room covered under this contract within the scope of standard janitorial services. The contracting officer shall order cleaning services through issuance of a task order for the appropriate and required work task(s). The contracting officer or designated representative will notify the contractor as soon as a special event requirement is known, but no less than 24 hours prior to the event. The period of performance will be determined for each instance of above standard services, as they will vary.

C.7 CONTRACTOR FURNISHED EQUIPMENT AND SUPPLIES:

The Contractor shall furnish the following tools and supplies:

- (1) All necessary commercial cleaning equipment including but not limited to: vacuum cleaner, high speed burnisher, and low speed buffer.

C.8 GOVERNMENT-FURNISHED PROPERTY:

The Government will deliver to the Contractor the following listed materials in accordance with the Government Furnished Property Clause FAR 52-245-4:

- (1) Manually propelled 20" auto scrubber
- (2) Rolling Scaffold
- (3) Rolling Leak Proof Trash Cans
- (4) Dumpsters for refuse removal.
- (5) Storage space for Contractor-furnished cleaning supplies and equipment.
- (6) Utilities and water necessary to complete the work.

NOTE: The Contractor shall notify the Government Contracting Officer's Representative (COR) if there are problems with the government-furnished property.

Janitorial equipment shall be commercial size and type customarily used by the janitorial profession

C.9 DAMAGES TO GOVERNMENT PROPERTY:

If the Contractor damages any Federal owned property, or Federal Employee-owned property in the opinion of the COR, the Contractor may make replacements and/or repairs to the approval of the COR, or the contracting agency may either hire another firm, or assign Federal personnel to repair

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the damage. This cost will be deducted from the contract payment due. Federal owned property is classified as, but not limited to electronic office equipment, office furniture, etc.

C.10 CONDUCT, TRAINING AND APPEARANCE OF CONTRACTOR EMPLOYEES

Contractor personnel shall comply with the property's traffic laws and other regulations and instruction pertaining to conduct, on Government property. They shall not disturb papers, desks, open desks or cabinets, or use office equipment which is provided for official Government use. Use of telephones by the Contractor shall be limited to emergency only. Personnel shall utilize conservation policies by not adjusting any heating or cooling devices and by turning off lights in unoccupied area unless otherwise directed.

Contractor personnel shall not, in any event, enter any areas to which access is restricted, unless such an area has been specifically identified as an area in which janitorial services are to be rendered.

The Contractor shall place his/her employees on notice that infraction of any of the above rules, regulations or prohibitions may be grounds for removal from Federal property.

The Contractor shall provide the Contractor's employees who perform the services with a copy of the statement of work and shall ensure they are thoroughly familiar with it. The Contractor shall train the employees so that they can operate the cleaning equipment properly and utilize the supplies to achieve the proper results.

Contractor employees must wear a shirt with collar, buttoned and tucked in full length trousers or slacks and shoes.

C.11 RESPONSIBILITY FOR PERFORMANCE

The Contractor shall be directly responsible for all work performance specified in the contract. The Contractor shall give adequate supervision at all times of the work which his/her employees are performing to ensure its complete and satisfactory performance in accordance with the terms of the contract. This includes adequate supervision to ensure proper employee conduct. Any cleaning group assigned must have adequate supervision. Interchanging of personnel must be held to a minimum.

C.12 CONTRACTOR'S QUALITY CONTROL

The Contractor shall establish a complete Quality Control Program to assure the requirements of the contract are provided as specified. One copy of the Contractor's Quality Control Program shall be provided to the Contracting Officer within 10 days of the contract start date and as changes occur. The program shall include, but not limited to the following:

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1. An inspection system covering all the services to be performed under the contract. It must specify areas to be on either a scheduled or unscheduled basis and the title of the individual (s) who will perform the inspection.
2. A method for identifying deficiencies in the quality of services performed before the level of performance becomes unacceptable. The Contractor shall maintain a file on all inspections conducted and all the corrective actions to be taken.

C.13 LOST AND FOUND PROPERTY

The Contractor shall ensure that all particles of possible or monetary value found by the Contractor's employees on the premises of this installation are turned over to the COR. At the time of their discovery, such items shall be tagged to identify location at which they were found.

C.14 INSPECTION OF BASIC CLEANING

The COR or other designated monitors will make random inspections of the building for which contractual services are to be provided. Deficiencies found by or reported to the COR will be brought to the attention of the Contractor's project manager.

Any and all deficiencies so identified must be corrected on that day. If such deficiencies are of a nature which preclude reaccomplishment or correction with the same day, the COR must be contacted for a time extension to cure the deficiencies.

C.15 REPORTS (DELIVERABLE)

Daily deficiency reports are due to the COR by 9:00 a.m., the following work day showing areas not cleared and the reason for cleaning them, deficiencies in building equipment or damage to the building such as defective utilities; missing, broken or inoperable soap, toilet paper, or towel dispensers; stopped up urinals or toilets; missing floor and/or ceiling tiles; broken doors and windows, etc.

The daily time sheet shall indicate the supervisor's name and each employee's name where work was performed and hours worked.

The Contractor shall submit each month – one week prior to the following month's services - schedules or work performance which shall comply with the requirements as set forth in the specification. The schedule shall include the type of services required for all frequencies of the person in charge. The schedule shall be used as a daily work report, verified by the supervisor and the COR. It shall be the responsibility of the Contractor to establish and maintain the schedule.

The Contractor should submit invoices to the COR in a timely fashion in order to expedite payment of services and allow for verification of charges.

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The Government reserves the right, without additional cost, to change, modify, or deleted report requirements for compliance by the Contractor, as may be required for Government purposes.

C.16 KEY CONTROL

The Contractor shall establish and implement methods of ensuring that all keys and magnetic cards issued to the Contractor by the Government are not lost or misplaced and are not used by unauthorized persons. No keys or cards issued the Contractor by the Government shall be duplicated.

The Contractor shall develop procedures (concerning key control) inclusion in the quality control plan.

1. If a standard key is lost, the lock for that room will be replaced by the Government and the total cost deducted from the monthly invoice. In the event a master key is lost or duplicated, all locks and keys for that system shall be replaced by the Government and the total cost deducted from the monthly invoice.
2. The Contractor shall report the occurrence of a lost key or card immediately to the COR during the next duty day.
3. It is the responsibility of the Contractor to prohibit use of keys or cards issued by the Government by any persons other than the Contractor's employees. It is also the responsibility of the Contractor to prohibit the opening of locked areas by the Contractor's employees to permit entrance of persons other than Contractors' employees engaged in the performance of assigned work in those areas.
4. The Contractor or his/her employee(s) shall report damage to Government property, loss of keys or cards, personal injuries and/or hazardous conditions to the COR within 12 work hours after such occurrence.
5. The contractor must comply with the personal identity verification (PIV) policies and procedures established by the United States Department of Agriculture (USDA) Directives 4620-002 series, Homeland Security Presidential Directive 12, and any implementing guidance issued by the Contracting Officer.
6. The Contractor may be given an alarm code in order to securely lock the facility upon the completion of cleaning. Keys to the doors and alarm codes must be kept confidential. If the Contractor is the last person to leave the property, he/she will be held responsible for securing the building as specified by the COR. Any irregularities or concerns will be addressed by the COR.

C.17 WORK OUTSIDE THE SCOPE

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On all matters that pertain to the contract terms, the Contractor must communicate with the Contracting Officer. Whenever, in the opinion of the Contractor, the COR requests effort outside the scope of the contract, the Contractor should so advise the COR. If the COR persists and there still exists a disagreement as to the proper contractual coverage, the Contracting Officer should be notified immediately, preferably in writing if time permits. Proceeding with work without proper contractual coverage could result in or necessitate submittal of contract claim.

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Quality Assurance Surveillance Plan **For** **Janitorial Services**

The following schedule outlines the Government's plan for ensuring contract performance; including maximum deductions which may be made should deficiencies be found for the noted services. The Government shall, at its option, require corrective action or take a deduction from the monthly invoice. The contractor will be notified of any discrepancies found and shall have an opportunity to respond to the deficiencies. The Government has the right to inspect services at any time. Any random inspection shall take into consideration the normally scheduled times and frequencies required for service performance. The Contractor is entitled to a joint monthly inspection each month. The Contractor shall coordinate with the Contracting Officer's Representative (COR) when a joint inspection is needed. The COR also may initiate a joint inspection, which will be coordinated with the Contractor Quality Control Representative or his/her designee.

Upon request the COR is entitled to review the results of the contractor's quality control program and internal inspections.

REQUIRED SERVICE	PERFORMANCE STANDARD	ALLOWABLE DEVIATION	METHOD OF SURVEILLANCE	MAXIMUM DEDUCTION FOR DEVIATION
Remove Trash	Accomplish per specifications and frequency schedule (C.3.2 and C.5)	2 defects per month	Random Sampling	3%
General Dusting - Low Cleaning	Accomplish per specifications and frequency schedule (C.3.9 and C.5)	2 defects per month	Random Sampling	3%
General Dusting - High Cleaning	Accomplish per specifications and frequency schedule (C.3.9 and C.5)	2 defects per month	Random Sampling	3%

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Spot Cleaning, Baseboards, corners, etc.	Accomplish per specifications and frequency schedule (C.3.1, C.3.8, C.5)	2 defects per month	Random Sampling	3%
Sweep Floors, Hallways and Stairs	Accomplish per specifications and frequency schedule (C.3.1 and C.5)	3% of area swept	Random Sampling	3%
Floor Maintenance	Accomplish per specifications and frequency schedule (C.3.1, C.5)	3% of area maintained	Random Sampling	3%
Mop Floors	Accomplish per specifications and frequency schedule (C.3.1, C.5)	3% of area mopped	Random Sampling	3%
Vacuum Carpet	Accomplish per specifications and frequency schedule (C.3.6, C.3.7, C.3.8, C.5)	3% of carpeted area	Random Sampling	3%
Clean/Refill Restroom Dispensers	Accomplish per specifications and frequency schedule (C.4.4 and C.5)	3 defects per month	Random Sampling	3%
Clean Restroom Fixtures and Floors	Accomplish per specifications and frequency schedule (C.4.1, C.4.2 and C.5)	3 defects per month	Random Sampling	8%

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Wash Restroom Walls and Doors	Accomplish per specifications and frequency schedule (C.5)	3 defects per month	Random Sampling	3%
Glass Cleaning/Mirrors	Accomplish per specifications and frequency schedule (C.3.3 and C.5)	3 defects per month	Random Sampling	2%
Ceramic Tile	Accomplish per specifications and frequency schedule (C.3.1, C.4.3 and C.5)	None	100% Inspection	8%
Drinking Fountains	Accomplish per specifications and frequency schedule (C.3.4 and C.5)	3 defects per month	Random Sampling	2%
Sinks, Fixtures, Toilet Bowls, Urinals	Accomplish per specifications and frequency schedule (C.4.1, C.4.2 and C.5)	1% of area cleaned	Random Sampling	4%
Entrance/Entrance mats maintenance	Accomplish per specifications and frequency schedule (C.3.7 and C.5)	1 defect per month	Random Sampling	2%

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Schedule of Items - See “Attachment 2 - Vendor Quotation Sheet Solicitation 12639526Q0120 Janitorial Services USDA AMS CT Memphis TN”.

Technical Data - Technical data and supporting documentation associated with this solicitation are available through the following sources:

1. Solicitation Attachments

The following documents are included as attachments to this solicitation and can be accessed via the “Attachments/Links” section of the posting.

- Attachment 1 - Solicitation Terms and Conditions
- Attachment 2 - Vendor Quotation Sheet Solicitation 12639526Q0120 Janitorial Services USDA AMS CT Memphis TN
- Attachment 3 - Vendor Experience Sheet Solicitation 12639526Q0120
- Exhibit 1 - Applicable Wage Determination US DOL WD 2015-4673 Rev. No. 30 Rev. Dec 3 2025 Shelby Co TN
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Federal Acquisition Regulation (FAR) and United States Department of Agriculture Acquisition Regulation (AGAR) Clauses and Provisions

The clauses and provisions contained herein are applicable to any order awarded as a result of this solicitation. The terms and conditions set forth herein supersede all other terms and conditions. Acceptance of the order in accordance with (IAW) FAR 12.201-1(b)(2) constitutes acceptance of all terms and conditions contained herein.

As part of the Revolutionary FAR Overhaul (RFO), system updates may lag policy updates. The System for Award Management (SAM) may continue to require entities to complete representations based on provisions that are not included in this solicitation. Contracting officers will rely on representations from offers based on provisions in the solicitation. Entities are not required to, nor are they able to, update their entity registration to remove these representations in SAM.

52.252-2 Clauses Incorporated by Reference

Feb 1998

This solicitation incorporates one or more clauses by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. Also the full text of the clause may be accessed electronically at Internet address <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-4 Terms and Conditions—Commercial Products and Commercial Services (Nov 2025)

☐ Alternate I (Nov 2025) of 52.212-4

52.203-17 Contractor Employee Whistleblower Rights (Nov 2023)

52.203-19 Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements (Jan 2017)

52.222-50 Combating Trafficking in Persons (Nov 2025)

☐ Alternate I (Nov 2025) of 52.222-50

52.226-8 Encouraging Contractor Policies to Ban Text Messaging While Driving (May 2024)

52.232-39 Unenforceability of Unauthorized Obligations (Jun 2013)

52.232-40 Providing Accelerated Payments to Small Business Subcontractors (Mar 2023)

52.233-3 Protest After Award (Sep 2025)

52.233-4 Applicable Law for Breach of Contract Claim (Sep 2025)

52.240-91 Security Prohibitions and Exclusions (Nov 2025)

☐ Alternate I (Nov 2025) of 52.240-91

52.244-6 Subcontracts for Commercial Products and Commercial Services (Nov 2025)

The following clauses are applicable if checked:

- ☒ 52.203-6 Restrictions on Subcontractor Sales to the Government (Jun 2020) with Alternate I (Nov 2021) of 52.203-6
- ☐ 52.203-13 Contractor Code of Business Ethics and Conduct (Nov 2021)
- ☒ 52.204-9 Personal Identity Verification of Contractor Personnel Jan 2011

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- ☒ 52.204-13 System for Award Management—Maintenance (Nov 2025)
- ☐ 52.204-91 Contractor identification (Nov 2025)
- ☒ 52.209-6 Protecting the Government's Interest When Subcontracting with Contractors Debarred, Suspended, or Proposed for Debarment (Sep 2025)
- ☒ 52.209-9 Updates of Publicly Available Information Regarding Responsibility Matters (Sep 2025)
- ☒ 52.209-10 Prohibition on Contracting with Inverted Domestic Corporations (Sep 2025)
- ☐ 52.219-4 Notice of Price Evaluation Preference for HUBZone Small Business Concerns (Nov 2025)
- ☐ 52.219-6 Notice of Total Small Business Aside (Nov 2025)
 - ☐ Alternate I (Mar 2020).
- ☒ 52.219-8 Utilization of Small Business Concerns (Nov 2025)
- ☐ 52.219-9 Small Business Subcontracting Plan (Nov 2025)
 - ☐ Alternate III (Nov 2025) of 52.219-9.
 - ☐ Alternate IV (Nov 2025) of 52.219-9
- ☐ 52.219-14 Limitations on Subcontracting (Nov 2025)
- ☐ 52.219-16 Liquidated Damages—Subcontracting Plan (Nov 2025)
- ☐ 52.219-33 Nonmanufacturer Rule (Nov 2025)
- ☒ 52.222-3 Convict Labor (June 2003)
- ☐ 52.222-19 Child Labor—Cooperation with Authorities and Remedies (Nov 2025)
- ☒ 52.222-35 Equal Opportunity for Veterans (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-35
- ☒ 52.222-36 Equal Opportunity for Workers with Disabilities (Nov 2025)
 - ☐ Alternate I (Jul 2014) of 52.222-36
- ☒ 52.222-37 Employment Reports on Veterans (Nov 2025)
- ☒ 52.222-40 Notification of Employee Rights Under the National Labor Relations Act (Dec 2010)
- ☒ 52.222-41 Service Contract Labor Standards (Aug 2018)
- ☒ 52.222-42 Statement of Equivalent Rates for Federal Hires (May 2014)

This Statement is for Information Only:

It is not a Wage Determination

Employee Class	Monetary Wage -- Fringe Benefits
11150 – Janitor	\$15.18/hr. -- \$5.09/hr.

- ☒ 52.222-43 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (Multiple Year and Option Contracts) (Aug 2018)
- ☐ 52.222-44 Fair Labor Standards Act and Service Contract Labor Standards -- Price Adjustment (May 2014)

Attachment 1 – Solicitation Terms and Conditions

Janitorial Services for USDA, AMS, Cotton & Tobacco Program in Memphis, TN Solicitation Number 12639526Q0120

- ☐ 52.222-51 Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment-Requirements (May 2014)
- ☐ 52.222-53 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services-Requirements (Nov 2025)
- ☒ 52.222-54 Employment Eligibility Verification (Nov 2025)
- ☒ 52.222-62 Paid Sick Leave Under Executive Order 13706 (Jan 2022)
- ☒ 52.222-90 Addressing DEI Discrimination by Federal Contractors (Apr 2026)
- ☒ 52.223-2 Reporting of Biobased Products Under Service and Construction Contracts (Nov 2025)
- ☐ 52.223-9 Estimate of Percentage of Recovered Material Content for EPA-Designated Items (May 2008)
 - ☐ Alternate I (May 2008) of 52.223-9
- ☒ 52.223-11 Ozone-Depleting Substances and High Global Warming Potential Hydrofluorocarbons (Nov 2025)
- ☐ 52.223-12 Maintenance, Service, Repair, or Disposal of Refrigeration Equipment and Air Conditioners (Nov 2025)
- ☒ 52.223-23 Sustainable Products and Services (Nov 2025)
- ☐ 52.224-3 Privacy Training (Jan 2017)
 - ☐ Alternate I (Jan 2017) of 52.224-3
- ☐ 52.225-1 Buy American-Supplies (Nov 2025)
 - ☐ Alternate I (Oct 2022) of 52.225-1
- ☐ 52.225-3 Buy American--Free Trade Agreements--Israeli Trade Act (Nov 2025)
 - ☐ Alternate II (Nov 2025) of 52.225-3.
 - ☐ Alternate III (Nov 2025) of 52.225-3.
 - ☐ Alternate IV (Oct 2022) of 52.225-3
- ☐ 52.225-5 Trade Agreements (Nov 2023)
- ☐ 52.225-19 Contractor Personnel in a Designated Operational Area or Supporting a Diplomatic or Consular Mission outside the United States (May 2020)
- ☐ 52.225-26 Contractors Performing Private Security Functions Outside the United States (Oct 2016)
- ☐ 52.226-4 Notice of Disaster or Emergency Area Set-Aside (Nov 2007)
- ☐ 52.226-5 Restrictions on Subcontracting Outside Disaster or Emergency Area (Aug 2025)
- ☐ 52.229-12 Tax on Certain Foreign Procurements
- ☐ 52.232-29 Terms for Financing of Purchases of Commercial Products and Commercial Services (Nov 2021)
- ☐ 52.232-30 Installment Payments for Commercial Products and Commercial Services (Nov 2021)
- ☒ 52.232-33 Payment by Electronic Funds Transfer— System for Award Management (Oct 2018)
- ☐ 52.232-34 Payment by Electronic Funds Transfer—Other Than System for Award Management (Jul 2013)

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- ☐ 52.232-36 Payment by Third Party (Nov 2025)
- ☒ 52.237-2 Protection of Government Buildings, Equipment, and Vegetation (Apr 1984)
- ☐ 52.237-3 Continuity of Services (Jan 1991)
- ☐ 52.240-92 Security Requirements (Nov 2025)
- ☐ 52.240-93 Basic Safeguarding of Covered Contractor Information Systems (No 2025)
- ☐ 52.247-64 Preference for Privately Owned U.S.-Flag Commercial Vessels (Nov 2025)
 - ☐ Alternate I (Apr 2023) of 52.247-64.
 - ☐ Alternate II (Nov 2021) of 52.247-64

Other Applicable Clauses

- 52.216-18 Ordering (Aug 2020)**
- 52.216-19 Delivery – Order Limitations (Oct 1995)**
- 52.216-22 Indefinite Quantity (Nov 2025)**
- 52.217-8 Option to Extend Services (Nov 1999)**
- 52.219-29 Notice of Set-Aside for, or Sole-Source Award to, Economically Disadvantaged Women-Owned Small Business Concerns (Apr 2026)**
- 52.245-1 Government Property (Sep 2021)**
 - ☒ Alternate I (Sep 2021) of 52.245-1
- 52.245-2 Government Property**
- 52.245-9 Use and Charges**

AGAR Clauses

452.203-71 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Compliance (Dec 2025)

(a) By entering into this contract, the Contractor certifies that:

- (1) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution, and it will remain compliant for the duration of the contract.
- (2) Neither it nor any subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution, and the Contractor and any subcontractor or teaming partner will not do so for the duration of the contract.

(b) If the Contractor participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other

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detention facilities, the Contractor certifies that it will remain compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The Contractor affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the Contractor is not eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to Contractor's compliance with the above requirements and/or eligibility for the contract may subject the Contractor to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) The Contractor must include the provisions of this clause in all subcontract solicitations.

(g) Failure on the part of the Contractor or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate this contract for default.

(End of Clause)

AGAR 452.203-72 Unenforceable Supplier Terms

(a) Definitions.

Supplier terms mean provisions customarily drafted by vendors of supplies or services and intended to create a binding legal obligation on the end user. The term applies:

- (1) Regardless of the format or style of the document. For example, supplier terms may appear in standard terms of sale or lease, Terms of Service (TOS), End User License Agreement (EULA), or another similar legal instrument or agreement, and may be presented as part of a proposal or quotation responding to a solicitation for a contract or order or otherwise become effective after the contract date.
- (2) Regardless of the media or delivery mechanism used. For example, supplier terms may be presented as one or more paper documents or may appear on a computer or other electronic device screen during a purchase, software installation, other product delivery, registration for a service, or another transaction.

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(b) Applicability. When any supply or service acquired under this contract is subject to supplier terms, the supplier terms are deemed part of the contract only to the extent they are consistent with this clause. Supplier terms that conflict with any part of this clause, the contract, or Federal law are void and will not be considered incorporated into a contract, even if they are physically present in a contract documentation or systems. In the event of any inconsistency between supplier terms and this contract, this clause and the terms of the Government contract shall govern and supersede any supplier terms in all cases.

(c) Authorization Required. Notwithstanding any other provision, no supplier terms shall be binding on the Government unless the term is expressly authorized on the USDA Supplier Terms Authorization Form signed by the Contracting Officer, and the completed Authorization Form has been incorporated into the contract.

(d) Unenforceable Terms. Any supplier terms that impose obligations or restrictions inconsistent with applicable Federal law are unenforceable against the Government and deemed stricken from the agreement. This includes, but is not limited to, any clause that:

- (1) Requires the Government to pay future fees, penalties, interest, legal costs, early-termination fees, cancellation fees, minimum purchase commitments, true-up payments, seat-count minimums, usage minimums, continued-use charges, or any other financial obligation not expressly authorized by the contract.
- (2) Requires the Government to indemnify the contractor or any other entity.
- (3) Restricts the Government's ability to obtain similar supplies or services from another source.
- (4) Imposes any penalty, financial or otherwise, based on the Government's decision not to exercise an option.
- (5) Subjects the United States Government to the laws of any U.S. state, territory, district, municipality, or foreign nation, except where Federal law expressly permits such application.
- (6) Requires dispute resolution in a forum or venue other than one prescribed by applicable Federal law.
- (7) Establishes a period of limitations for bringing an action that differs from that provided by applicable Federal law.
- (8) Grants the contractor rights to use, mine, access, aggregate, analyze, or otherwise exploit Government data, usage data, or metadata.
- (9) Deems the Government to have accepted initial or revised terms based on silence, continued performance, or failure to object.

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- (10) Grants the supplier the right to audit Government facilities, systems, records, or use of the product or service, except as expressly authorized by the contract and applicable Federal law.
 - (11) Requires the Government to accept supplier security requirements, network access requirements, monitoring, penetration testing, or other technical or security measures.
 - (12) Permits the supplier to suspend, degrade, or terminate access to products or services based on alleged non-payment, alleged breach, automated security triggers.
 - (13) Limits the Government's right to use, install, access, test, evaluate, or transfer the licensed product or service in any manner consistent with the contract and Federal law.
 - (14) Requires the Government to store, process, maintain, or transmit data in a particular geographic location, or permits the supplier to transfer Government data outside the United States, except as expressly authorized by applicable Federal law.
 - (15) Authorizes the supplier to use the Government's name, seal, trademark, logo, or any reference to the Government as an end user or customer for marketing, publicity, promotional activities, press releases, or similar purposes.
 - (16) Incorporates by reference, or requires the Government to accept, terms or conditions imposed by any third party, subcontractor, or upstream service provider, unless such terms are expressly incorporated into the contract by bilateral modification.
 - (17) Limits, conditions, or negates the contractor's performance obligations, service levels, or remedies through a supplier-provided service level agreement (SLA).
 - (18) Uses Government data, usage data, metadata, prompts, content, or interactions to train, fine-tune, improve, or derive any artificial intelligence, machine learning, or automated decision-making model.
 - (19) Subjects the Government to automated decision-making, automated risk scoring, automated content moderation, or any algorithmic process that may affect access, performance, or rights under the contract.
 - (20) Utilizes artificial intelligence or algorithmic tools that produce decisions, recommendations, or outputs affecting contract performance without providing transparency, explainability, auditability, and bias-mitigation consistent with applicable Federal law and policy.
 - (21) Profiles, tracks, or analyzes Government user behavior, preferences, communications, or interactions for personalization, marketing, or algorithmic optimization purposes.
- (e) Non-binding Actions. Neither the Government nor any Government authorized end user is deemed to have consented to any term, condition, or clause by virtue of its inclusion in the supplier

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agreement or through the use of clickwrap, browsewrap, “I agree” mechanisms, or similar means. Execution of such mechanisms does not bind the Government or its authorized end users to any unenforceable terms.

(f) End user. The supplier agreement shall bind the ordering activity as the end user to the extent it does not conflict with the terms of this clause, but it shall not bind or impose personal liability on any Government employee or any person acting on behalf of the Government in their personal capacity.

(g) Law and disputes. The supplier agreement is governed by Federal law.

(h) Statutory exception. This clause does not apply to indemnification or any other payment by the Government that is expressly authorized by statute and specifically authorized under applicable agency regulations and procedures.

(i) Continued performance. The supplier or licensor shall not unilaterally revoke, terminate, or suspend any rights granted to the Government except as allowed by the contract. If the supplier or licensor believes the ordering activity to be in breach of the supplier agreement, it shall pursue its rights under the Contract Disputes Act or other applicable Federal statute while proceeding diligently with performance, pending final resolution of any dispute in accordance with the Disputes Clause at FAR 52.212-4(d) or FAR 52.233-1, as applicable.

(j) Arbitration. Binding arbitration shall not be used unless specifically authorized by agency guidance.

(k) Equitable or injunctive relief. Equitable or injunctive relief, including the award of attorney fees, costs, or interest, may be awarded against the United States Government only when explicitly provided by statute (e.g., the Prompt Payment Act or the Equal Access to Justice Act).

(l) Revisions to supplier agreements. Any revisions to the supplier agreement must be incorporated into the contract using a bilateral modification. Unilateral revisions are not binding on the Government.

(m) No automatic renewals. If any license or service tied to periodic payment is provided under the supplier agreement (e.g., annual software maintenance or annual lease term), such license or service shall not renew automatically upon expiration of its current term without prior express written consent from an authorized Government representative.

(n) Indemnification. Any clause of the supplier agreement requiring the supplier or licensor to defend or indemnify the end user is amended to provide that the U.S. Department of Justice has the sole right to represent the United States in any such action, in accordance with 28 U.S.C. 516.

(o) Taxes or surcharges. Any taxes or surcharges which the supplier or licensor seeks to pass along to the Government as end user will be governed by the terms of the associated Government contract

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or order and must be submitted to the Contracting Officer for a determination of applicability prior to invoicing unless specifically agreed otherwise.

(p) Non-assignment. The supplier agreement may not be assigned, nor may any rights or obligations thereunder be delegated, without the Government's prior approval, except as expressly permitted by FAR 52.212-4(b) or FAR 52.232-23, as applicable.

(q) Confidential information. If the supplier agreement includes a confidentiality clause, such clause is amended to state that neither the agreement nor the contract price list, as applicable, shall be deemed "confidential information." Issues regarding release of "unit pricing" will be resolved consistent with the Freedom of Information Act. Notwithstanding anything in the supplier agreement to the contrary, the Government may retain any confidential information as required by law, regulation, or its internal document retention procedures for legal, regulatory, or compliance purposes; provided, however, that all such retained confidential information will continue to be subject to the confidentiality obligations of the supplier agreement.

(r) Conflict with Federal law. If any other language, provision, or clause of the supplier agreement conflicts or is inconsistent with Federal law or the terms and conditions of this contract, such language, provisions, or clauses will be considered null and void and will not be binding on the United States Government.

(End of Clause)

452.204–70 Modification for Contract Closeout (Apr 2026)

(a) If unliquidated funds in the amount of \$1000 or less remain on the contract, the Contracting Officer (Contracting Officer) may issue a unilateral modification for deobligation. The contractor will receive a copy of the modification but is not required to provide a signature. The Contracting Officer will immediately proceed with contract closeout upon completion of the period of performance, receipt and acceptance of supplies or services, and final payment.

(b) For commercial contracts not exceeding the simplified acquisition procedure threshold under FAR 12.001(c), if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification. Only the modification requires the contractor's signature, though a Release of Claims may be requested. If the required documents are not returned within 60 days, the Contracting Officer will issue a unilateral modification and proceed with closeout once performance is complete, acceptance is confirmed, and final payment is made.

(c) For all other non-commercial or non-cost-reimbursement contracts, if more than \$1,000 in unliquidated funds remain at closeout, the Contracting Officer will issue a bilateral deobligation modification and a Release of Claims, both requiring contractor signature. If these documents are not returned within 120 days, the Contracting Officer will issue a unilateral modification and proceed with closeout upon completion of performance, acceptance, and final payment.

(End of Clause)

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452.204-71 Personal Identity Verification and Workforce Integrity of Contractor Employees (Apr 2026)

(a) Compliance with PIV Requirements. The contractor must comply with the personal identity verification (PIV) policies and procedures established by the United States Department of Agriculture (USDA) Directives 4620-002 series, Homeland Security Presidential Directive 12, and any implementing guidance issued by the Contracting Officer. The contractor must appoint a representative responsible for PIV compliance and must maintain a current list of employees eligible for a USDA LincPass or otherwise authorized to perform work under this contract.

(b) PIV Sponsor Availability. The PIV Sponsor for this contract is the designated Government point of contact identified in the contract, typically the COR unless otherwise specified. The Government will notify the contractor of any changes. The contractor remains responsible for meeting all PIV obligations regardless of changes in sponsor availability.

(c) Contractor Workforce Integrity and Accountability. The contractor is fully responsible for ensuring that all individuals performing under this contract are properly vetted, eligible for access, authorized to perform the work, and accurately represented. At a minimum, the contractor must implement lawful and effective internal controls to:

- (1) Verify the identity, work authorization, and qualifications of all personnel assigned;
- (2) Ensure only the individuals presented to USDA for PIV enrollment or identity verification perform work;
- (3) Detect and address indicators of identity fraud, unauthorized substitution, or other workforce integrity risks; and
- (4) Ensure continuous oversight of personnel, including remote workers, in accordance with any reporting requirements specified in the Contract.

(d) Mandatory Removal and Replacement. If the Government determines that a contractor employee fails to meet eligibility, security, integrity, or performance requirements, the Contracting Officer may direct the contractor to remove the individual from performance. The contractor must:

- (1) Remove the employee immediately upon notice;
- (2) Provide a qualified replacement at no additional cost to the Government; and
- (3) Ensure continuity of operations so as not to impact mission requirements.
- (4) Failure to promptly remove or replace employees when directed may result in remedies including withholding payment, termination, or other actions authorized under this contract.

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(e) Impact on Contractor Performance. Contractor compliance with this clause, including timely removal and replacement of personnel, adherence to PIV requirements, and maintenance of workforce integrity, is a material requirement of this contract. Incidents of identity discrepancies, failure to maintain an eligible workforce, submission of personnel who do not match verified identities, unauthorized substitutions, or failure to comply with Government direction may result in termination and will be documented in the contractor's performance assessment and reflected in the Contractor Performance Assessment Reporting System (CPARS).

(f) Subcontractor Applicability. The contractor must include this clause in all subcontracts requiring routine unaccompanied physical access to a Federally controlled facility and/or routine unaccompanied access to a Federally controlled information system. The contractor is accountable for ensuring subcontractor compliance.

(g) No Government Direction of Hiring Practices. Nothing in this clause authorizes the Government to direct the contractor's internal hiring processes or require the disclosure of personal information beyond what is authorized by law, regulation, or contract terms. The contractor remains solely responsible for determining lawful methods to meet the requirements of this clause.

(End of Clause)

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Solicitation Information

Award Type

It is anticipated that a five (5) year firm-fixed price, Indefinite-Delivery, indefinite-Quantity (IDIQ) contract consisting of five (5) one-year Ordering Periods for Standard Janitorial Services and Above Standard (As-Needed) Janitorial Services. It is anticipated that the 5-year IDIQ contract will contain the following Ordering Periods:

- Ordering Period 1 - 08/01/2026 – 07/31/2027
- Ordering Period 2 - 08/01/2027 – 07/31/2028
- Ordering Period 3 - 08/01/2028 – 07/31/2029
- Ordering Period 4 - 08/01/2029 – 07/31/2030
- Ordering Period 5 - 08/01/2030 – 07/31/2031

The Government intends to make one award from this solicitation. Therefore, to be considered responsive, contractors must submit pricing for all items.

Evaluation and Basis for Award

The provision at FAR 52.212-2, Evaluation—Commercial Products and Commercial Services is not applicable to this solicitation. In lieu of this provision, quotes will be evaluated in accordance with FAR 12.203 based on the criteria listed below. Award will be made to the offeror representing the best value to the Government.

Evaluation Method:

All quotations will be evaluated to identify the offeror presenting the most technically advantageous solution based on the stated evaluation criteria. Once the highest technically rated quotation is identified, their price will be evaluated to determine whether it is fair and reasonable. Past performance will also be assessed to ensure it is acceptable or neutral.

Award will be made to the Vendor whose proposal is determined to be the highest technically rated, provided that:

- The proposed price is fair and reasonable, and
- Past performance is assessed as acceptable or neutral.

Award will not necessarily be made to the Vendor who submits the lowest-priced quote. Tradeoffs will not be conducted.

Technical Approach: Vendors must provide a Technical Approach narrative, not-to-exceed ten (10) pages in length and with a font size no smaller than Times New Roman 12 pt., to specifically address how they will accomplish the janitorial services required. The Technical Approach narrative must also address how the Vendor will manage staffing, provide coverage for absences (short and long-term), and provide training for staff. The evaluation of the Vendor's Technical Approach will

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evaluate the ability of the Vendor to provide a sound and compliant approach that meets all requirements and shows a thorough understanding of them. It is the Vendor's responsibility to ensure their quotation clearly demonstrates their capability to meet these requirements.

Price:

Vendors must provide pricing as requested in the “Attachment 2 - Vendor Quotation Sheet Solicitation 12639526Q0120 Janitorial Services USDA AMS CT Memphis TN” of this Request for Quote. Failure to quote pricing for all individual line items may result in a quotation being excluded from further consideration. The Vendor’s quotation will be evaluated in accordance with FAR 12.204, to determine if it is fair and reasonable.

Total price evaluation will be for the combined evaluated price for all five (5) one-year Ordering Periods, and in accordance with FAR 52.217-8, up to a six-month extension period.

For purposes of evaluation, the potential need to exercise the option under FAR 52.217-8 to extend a period of performance for a maximum period of six (6) months beyond any period of performance will be considered the same for all offerors. The Government will consider that if the extension of service clause (FAR 52.217-8) is exercised, it will be on the exact same rates and terms, other than length of performance, as the period of performance being extended. For purposes of evaluation only, the Government will use the rates specified in the last option period and add the cost of six months to the prices proposed for the base period and all option periods to determine total evaluated price of the contract. The Government will determine whether the price, including the options available under FAR 52.217-8, is fair and reasonable.

Prices for Above Standard (As-Needed) Janitorial Services will not be included within the total evaluated price. However, the prices will be reviewed for price realism. Prices for Above Standard (As-Needed) Janitorial Services, when reviewed in conjunction with the total evaluated price, should be consistent.

Experience & Past Performance:

Vendors must submit a completed “Attachment 3 - Vendor Experience Sheet Solicitation 12639526Q0120” with their quotation.

The Government may utilize any references provided by the Contractor, along with information available from past contracts/orders with the USDA and any information found using sources such as Federal Government sources or the Contractor Performance Assessment Reporting System (CPARS) to determine if the Contractor has acceptable or neutral Past Performance. Past Performance will be evaluated using the following rating system:

- Acceptable: The contractor shows a demonstrated ability to meet contract requirements in prior or current contracts, including quality of work, timeliness, cost control, business relations, and adherence to contract terms.
- Neutral: Offeror does not have a past performance record.

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- Unacceptable: The contractor has a documented history of failing to meet contract requirements, including poor quality, missed deadlines, cost overruns, lack of responsiveness, or unethical behavior.

Delivery Information

F.o.b. destination, is requested as the F.O.B. point for all deliverables.

All quotations will be considered F.O.B. Destination unless F.O.B. origin is specified AND estimated shipping costs are included.

The USDA requires delivery of all items by the dates or frequencies identified in Section C.15. Early deliveries will not be accepted.

Shipping Instructions:

Items shall be shipped to the following address:

USDA, AMS, Cotton and Tobacco Program Memphis complex located at 3275 Appling Road, Memphis, TN 38133.

Qualification Requirements

Offerors, or the product or service, are not required to meet a qualification requirement to be eligible for award.

52.252-1 Solicitation Provisions Incorporated by Reference Feb 1998

This solicitation incorporates one or more solicitation provisions by reference, with the same force and effect as if they were given in full text. Upon request, the Contracting Officer will make their full text available. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. Also, the full text of a solicitation provision may be accessed electronically at this/these address(es): <https://www.acquisition.gov/far-overhaul/far-part-deviation-guide/far-overhaul-part-52>

52.212-1 Instructions to Offerors - Commercial Products and Commercial Services (Nov 2025)

FAR 52.212-1 is amended as follows:

Questions

Questions must be submitted via email to Matthew.Phillips3@usda.gov and are due no later than May 12, 2026, at 12:00 PM Central Daylight Time. This will ensure enough time to respond before the solicitation period ends. Please include the solicitation name and number as the subject line of the email.

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- 52.203-18 Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements-Representation (Jan 2017)**
52.209-2 Prohibition on Contracting with Inverted Domestic Corporations - Representation (Sep 2025)
52.209-11 Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law (Sep 2025)
52.240-90 Security Prohibitions and Exclusions Representations and Certifications (Nov 2025)

The following provisions are applicable if checked:

- ☒ 52.203-11 Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions (Sep 2024)
- ☒ 52.204-7 System for Award Management—Registration (Nov 2025)
 - ☐ Alternate I (Nov 2025) to 52.204-7
- ☐ 52.204-90 Offeror Identification (Nov 2025)
- ☐ 52.207-6 Solicitation of Offers from Small Business Concerns and Small Business Teaming Arrangements or Joint Ventures (Multiple-Award Contracts) (Aug 2024)
- ☐ 52.209-12 Certification Regarding Tax Matters (Oct 2025)
- ☐ 52.219-2 Equal Low Bids (Nov 2025)
- ☐ 52.222-18 Certification Regarding Knowledge of Child Labor for Listed End Products (Feb 2021)
- ☐ 52.222-48 Exemption from Application of the Service Contract Labor Standards for Maintenance, Calibration, or Repair of Certain Equipment—Certification (Nov 2025)
- ☐ 52.222-52 Exemption from Application of the Service Contract Labor Standards for Certain Services—Certification (Nov 2025)
- ☐ 52.222-56 Certification Regarding Trafficking in Persons Compliance Plan (Oct 2020)
- ☐ 52.223-4 Recovered Material Certification (May 2008)
- ☐ 52.225-2 Buy American Certificate (Oct 2022)
- ☐ 52.225-4 Buy American-Free Trade Agreements-Israeli Trade Act Certificate (Nov 2025)
- ☐ 52.225-6 Trade Agreements-Certificate (Feb 2021)
- ☐ 52.226-3 Disaster or Emergency Area Representation (Nov 2007)
- ☒ 52.229-11 Tax on Certain Foreign Procurements—Notice and Representation (Jul 2025)

Other Applicable FAR Provisions

- 52.233-2 Service of Protest (Sep 2025)**
52.237-1 Site Visits (Apr 1984)

AGAR Provisions

Attachment 1 – Solicitation Terms and Conditions

Janitorial Services for USDA, AMS, Cotton & Tobacco Program in Memphis, TN Solicitation Number 12639526Q0120

452.203-70 Anti-Discrimination and Diversity, Equity, and Inclusion (DEI) Certification (Dec 2025)

(a) By submission of its offer, the offeror certifies that:

- (5) It is compliant with all applicable Federal anti-discrimination laws and the Equal Protection principles of the U.S. Constitution.
- (6) Neither it nor any proposed subcontractor or teaming partner operates or funds any program, policy, or initiative that promotes DEI in a manner that violates any applicable Federal anti-discrimination laws, including but not limited to Title VI and VII of the Civil Rights Act of 1964, or the Equal Protection principles of the U.S. Constitution.

(b) If the offeror participates in, facilitates, or funds programs that implicate Title VI of the Civil Rights Act of 1964 or Title IX of the Education Amendments of 1972, as amended, including but not limited to grants to or for schools, colleges, universities, 4-H programs, non-governmental organization (NGO) programs, sports programs, and education-related grants to prisons or other detention facilities, by submission of its offer, the offeror certifies that it is compliant with those laws, including the requirements set forth in Executive Order 14168, Defending Women from Gender Ideology Extremism and Restoring Biological Truth to the Federal Government, and Executive Order 14173, Ending Illegal Discrimination and Restoring Merit-Based Opportunity.

(c) The offeror affirms that the above requirements are conditions of payment that go to the essence of the contract and are therefore material terms of the contract. Payments under the contract are predicated on compliance with the above requirements, and therefore the offeror will not be eligible for funding under the contract or to retain any funding under the contract absent compliance with the above requirements.

(d) This certification reflects a change in the Government's position regarding the materiality of the foregoing requirements and therefore any prior payment of similar claims does not reflect the materiality of the foregoing requirements to this contract.

(e) Submission of a knowing false statement relating to offeror's compliance with the above requirements and/or eligibility for the contract may subject the offeror to liability under the False Claims Act, 31 U.S.C. § 3729, and/or criminal liability, including under 18 U.S.C. §§ 287 and 1001.

(f) Failure on the part of the offeror or its subcontractors to comply with the terms of this clause may be grounds for the Contracting Officer to terminate the contract for default.

(End of Provision)

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NOTICE FOR FILING AGENCY PROTESTS United States Department of Agriculture (USDA) Ombudsman Program

The USDA is committed to issuing solicitations and awarding contracts in a fair and prompt manner. The Ombudsman Program for Agency Protests (OPAP) was established to address protest issues within the agency, providing an alternative to costly and time-consuming litigation. Operating independently, OPAP offers relief comparable to that granted by the Government Accountability Office (GAO). Interested parties are encouraged to resolve concerns through USDA's internal Alternative Dispute Resolution (ADR) process before pursuing external forums such as the GAO. Concerns may be addressed informally or through a formal agency protest filed with either the Contracting Officer or the Ombudsman.

Informal Forum with the Ombudsman

1. **Initial Point of Contact:** Interested parties who believe a specific USDA procurement is unfair or otherwise defective should first direct their concerns to the applicable Contracting Officer.
2. **Escalation:** If the Contracting Officer is unable to address their concerns, interested parties are encouraged to contact the USDA Ombudsman for Agency Protests. Under this informal process, the agency is not required to suspend contract award performance. Utilization of the informal forum does not suspend any time requirement for filing a formal protest with the agency or other forums.
3. **Required Information:** To ensure a timely response, interested parties should provide the following information to the Ombudsman: solicitation/contract number, contracting office, Contracting Officer, and solicitation closing date (if applicable).

Formal Agency Protest with the Ombudsman

1. **Effort to Resolve:** Prior to submitting a formal agency protest, protesters must first use their best efforts to resolve their concerns with the Contracting Officer through open and frank discussions.
2. **Independent Review:** If the protester's concerns remain unresolved, an Independent Review is available by the Ombudsman. The protester may file a formal agency protest with either the Contracting Officer or, alternatively, with the Ombudsman under the OPAP program. Contract awards or performance will be suspended during the protest period unless justified in writing for urgent and compelling reasons or determined in writing to be in the best interest of the Government.
3. **Resolution Timeline:** The agency's goal is to resolve protests within 35 calendar days from the date of filing.
4. **Required Information:** Protests shall include the information set forth in FAR 33.104(a)(3). Failure to submit the required information may result in a delay or dismissal of the protest.
5. **Timeliness:** Protests must be filed within the timeframes specified in FAR 33.104.
6. **Submission:** Formal protests under the OPAP program should be submitted electronically to SPE.inquiry@usda.gov and the Contracting Officer.

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Election of Forum. By initiating a protest with the USDA, the protester agrees not to pursue the same matter with the Government Accountability Office (GAO) or any other external forum while the agency protest is pending. If a protest is filed externally, the agency protest will be dismissed.